

Bihar Government Servant's Applications for Posts Rules, 1956

Source: <https://indiankanoon.org/doc/71971047/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Bihar - Act

Bihar Government Servant's Applications for Posts Rules, 1956

BIHAR

India

Bihar Government Servant's Applications for Posts Rules, 1956

Rule BIHAR-GOVERNMENT-SERVANT-S-APPLICATIONS-FOR-POSTS-RULES-1956 of 1956

Published on 4 October 1956

Commenced on 4 October 1956

[This is the version of this document from 4 October 1956.]

[Note: The original publication document is not available and this content could not be verified.]

Bihar Government Servant's Applications for Posts Rules, 1956

Published vide Notification No. Hi/Ri-2021/55-A-9085, dated 4.10.1956

1.

These Rules may be called the Bihar Government Servant's Applications for Posts Rules, 1956.

2.

An applicant for appointment to a post or service under the administrative control of the Government of Bihar shall not be eligible for appointment if he is in service of the Union or of a State and has applied without the consent of the head of the office or department, of the Government of Bihar or consent of the State Government, or the Government of India, as the case may be, under whom he is employed, or the consent of any authority empowered in this behalf by any such Government.

3.

Permission to a Government servant employed in a service or post under the administrative control of the Government of Bihar shall,-

(a)

if he is a temporary 'Government servant, ordinarily be granted to submit an application for a post, to appear for an examination for a post, or for transfer of service to a post in another office or department of the Government of Bihar, or under another State Government or the Government of India, as the case may be, if the post applied for is permanent, or is in a higher grade, or is a temporary post of longer duration;

(b)

if he is a permanent Government servant-

(i)

ordinarily be granted for appointment to, or for appearing at, an examination or selection for appointment to an All India Service or to a post in a Central Service Class I,

(ii)

ordinarily be not granted save for exceptional reasons to be recorded in writing for appointment to a post or service under another State Government or for appointment to any post under the Government of India other than those specified in Clause (i) of this sub-rule,

(iii)

ordinarily be not granted to submit an application for a post, or for transfer of service to a post in another office or Department of the Government of Bihar, unless the Head of the office or the Department, or the authority empowered under Rule 2, is of the opinion that the grant of permission would be in the interests of the public service:

Provided that in the case of a Government servant, who holds a lien on a post under another State Government or under the Government of India but is temporarily employed under the administrative control of the Government of Bihar, the concurrence of the State Government concerned or of the Government of India, as the case may be, shall be obtained before permission is granted;

(c)

notwithstanding anything contained in Clauses (a) and (b) of this Rule, where the government servant concerned whether holding a temporary or permanent appointment, cannot be spared without serious detriment to the Public Service, the authority empowered to forward his application may withhold the application even though otherwise, his application would normally have been forwarded under these Rules.

4.

The authority forwarding an application under these Rules will decide in each case the period likely to be taken for relief of the applicant after intimation of his appointment has been received. Where an application has been forwarded under the provisions of Clause (a) or (b) of Rule 3, and the applicant is selected for appointment, he shall be released by the authority who forwarded the application, unless circumstances of a very exceptional nature have arisen in the meantime, which justify a refusal to release the applicant.

5.

A Government servant employed under another State Government or under the Government of India shall not be accepted as a candidate for an appointment to a post or service under the administrative control of the Government of Bihar save and except with the permission of the Government concerned.

Related AI tags, queries and research notes

Translation